

SENATE No. 2662

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, November 10, 2025.

The committee on Consumer Protection and Professional Licensure to whom was referred the petition (accompanied by bill, Senate, No. 210) of John J. Cronin, Cindy F. Friedman, Sally P. Kerans, Jacob R. Oliveira and other members of the General Court for legislation to expand wheelchair warranty protections for consumers with disabilities, report the accompanying bill (Senate, No. 2662).

For the committee,
Pavel M. Payano

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An Act expanding wheelchair warranty protections for consumers with disabilities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 93 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by inserting after section 107 the following new section:-

3 Section 107A. (a) As used in this section the following words shall have the following
4 meanings unless the context clearly indicates otherwise:

5 "Authorized wheelchair dealer", any company doing business in the state selling or
6 leasing wheelchairs, including complex rehabilitation technology wheelchairs.

7 "Complex rehabilitation technology wheelchair", a specialized, medically necessary
8 manual or powered wheelchair individually configured for the user with specialized equipment
9 that requires evaluation, configuration, fitting, adjustment, programming and long-term
10 maintenance and repair services.

11 "Consumer", the purchaser or lessee of a wheelchair, including a complex rehabilitation
12 technology wheelchair, irrespective of whether the purchase or lease of the wheelchair is funded
13 in whole or in part by the consumer or privately or publicly funded health insurance.

14 "Timely repair", as soon as practicable but not later than ten business days after the date
15 of request for repair from a consumer that makes the wheelchair available and any prior
16 authorization required from an insurer has been acquired; provided, any time spent waiting for
17 prior authorization from an insurer or for delivery of necessary parts ordered for the repair by an
18 authorized wheelchair dealer acting in compliance with subsection (d) shall not be included in
19 the ten business days.

20 "Wheelchair", a manual or motorized wheeled device that enhances the mobility or
21 positioning of an individual with a disability and includes a complex rehabilitation technology
22 wheelchair.

23 (b) An authorized wheelchair dealer shall timely repair a wheelchair, including a complex
24 rehabilitation technology wheelchair, sold or leased by such dealer in the state. An authorized
25 wheelchair dealer who sells or leases a complex rehabilitation technology wheelchair in the state
26 shall provide timely repair of such wheelchair at a consumer's home upon request.

27 (c) An authorized wheelchair dealer shall maintain an electronic mail address and a
28 phone line for consumer repair requests that are accessible each business day and capable of
29 receiving and recording messages. The authorized wheelchair dealer shall respond to a request
30 for wheelchair repair not later than one business day after the date of request, and order parts for
31 a repair not later than three business days after assessing the need for the repair or after receiving
32 prior authorization from an insurer for the repair.

(d) Manufacturers or other authorized wheelchair dealers shall fill all repair and replacement orders for wheelchairs pursuant to this section from their own inventory or have a written subcontract for the purchase of items necessary to fill repair and replacement orders; provided, however, that the subcontract shall be in writing and contain, at a minimum: (i) names, addresses, phone numbers and contact information for both entities; (ii) the contract term start and end dates; (iii) a description of the wheelchairs covered under the subcontract and the cost of each item; (iv) signatures of both parties, including signature dates and position titles; (v) an established credit limit that is reasonable, based on the value of the products and services to be provided by the contractor; and (vi) a provision requiring shipping of parts, whenever feasible, by overnight mail.

(e) (1) Nothing contained in this section shall be deemed to limit any rights or remedies available to a consumer under any other law. Any waiver by a consumer of rights under this section shall be void.

(2) In addition to pursuing any other remedy, a consumer may bring an action to recover for damages caused by a violation of this section. The court shall award a consumer who prevails in such an action twice the amount of any pecuniary loss, together with costs, disbursements and reasonable attorney fees, and any equitable relief that the court deems is appropriate.

(f) The attorney general shall promulgate such rules and regulations as deemed necessary for the interpretation, implementation, administration, and enforcement of this section. Such authority shall be in addition to the attorney general's authority to promulgate rules and regulations under section 2 of chapter 93A.

SECTION. 2. Chapter 118E of the General Laws, as so appearing, is hereby amended by inserting after section 10Q the following section:-

Section 10R. For purposes of this section, “complex rehabilitation technology wheelchair” shall mean a specialized, medically necessary manual or powered wheelchair individually configured for the user with specialized equipment that requires evaluation, configuration, fitting, adjustment, programming and long-term maintenance and repair services.

The division and its contracted health insurers, health plans, health maintenance organizations, behavioral health management firms and third-party administrators under contract to a Medicaid managed care organization or primary care clinician plan shall not require a preauthorization for any repair of a complex rehabilitation technology wheelchair unless the original prescription is more than five years old.

SECTION 3. Chapter 175 of the General Laws, as so appearing, is hereby amended by inserting after section 47UU the following section:-

Section 47VV. For purposes of this section, “complex rehabilitation technology wheelchair” shall mean a specialized, medically necessary manual or powered wheelchair individually configured for the user with specialized equipment that requires evaluation, configuration, fitting, adjustment, programming and long-term maintenance and repair services.

Any policy, contract, agreement, plan or certificate of insurance issued, delivered or renewed within the commonwealth, which is considered creditable coverage under section 1 of chapter 111M, shall not require a member to obtain a preauthorization for any repair of a complex rehabilitation technology wheelchair unless the original prescription is more than five years old.

SECTION 4. Chapter 176A of the General Laws, as so appearing, is hereby amended by inserting after section 8VV the following section:-

Section 8WW. For purposes of this section, “complex rehabilitation technology wheelchair” shall mean a specialized, medically necessary manual or powered wheelchair individually configured for the user with specialized equipment that requires evaluation, configuration, fitting, adjustment, programming and long-term maintenance and repair services.

Any contract between a subscriber and the corporation under an individual or group hospital service plan that is delivered, issued or renewed within the commonwealth shall not require a member to obtain a preauthorization for any repair of a complex rehabilitation technology wheelchair unless the original prescription is more than five years old.

SECTION 5. Chapter 176B of the General Laws, as so appearing, is hereby amended by inserting after section 4VV the following section:-

Section 4WW. For purposes of this section, “complex rehabilitation technology wheelchair” shall mean a specialized, medically necessary manual or powered wheelchair individually configured for the user with specialized equipment that requires evaluation, configuration, fitting, adjustment, programming and long-term maintenance and repair services.

Any subscription certificate under an individual or group medical service agreement delivered, issued or renewed within the commonwealth shall not require a member to unless the original prescription is more than five years old.

SECTION 6. Chapter 176G of the General Laws, as so appearing, is hereby amended by inserting after section 4NN the following section:-

Section 40O. For purposes of this section, “complex rehabilitation technology wheelchair” shall mean a specialized, medically necessary manual or powered wheelchair individually configured for the user with specialized equipment that requires evaluation, configuration, fitting, adjustment, programming and long-term maintenance and repair services.

Any individual or group health maintenance contract that is issued or renewed shall not require a member to obtain a preauthorization for any repair of a complex rehabilitation technology wheelchair unless the original prescription is more than five years old.

SECTION 7. Section 25 of chapter 176O of the General Laws, as so appearing, is hereby amended by inserting after the word “services”, in line 49, the following words:- ; provided, however, that a health plan shall not require a prior authorization for any repair of a complex rehabilitation technology wheelchair unless the original prescription is more than five years old.

SECTION 8. Section 107 of chapter 93 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking out the definition of “Consumer” appearing in lines 7 through 14, and inserting the following definition:

“Consumer”, (i) the purchaser of a wheelchair, including purchases covered by private or public insurance, if the wheelchair was purchased from a wheelchair dealer or manufacturer for purposes other than resale; (ii) a person to whom the wheelchair is transferred for purposes other than resale; provided, however, that such transfer shall occur before the expiration of an express warranty applicable to the wheelchair; (iii) a person who may enforce the express warranty applicable to the wheelchair; or (iv) a person who leases a wheelchair from a wheelchair lessor under a written lease; provided, however, that “consumer” shall include a person who has

received a purchased or leased wheelchair irrespective of whether the purchase or lease is funded in whole or in part by the consumer or privately or publicly funded health insurance.

SECTION 9. Section 107 of chapter 93 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended inserting the following new definition:

“Temporary loaner wheelchair”, a wheelchair provided to the consumer that: (i) is free of charge; (ii) is in good working order; (iii) is able to perform the most essential functions of the original wheelchair, considering the disabilities of the user; and (iv) does not have any differences from the original wheelchair that create a threat to health or safety; provided, however, that a “temporary loaner wheelchair” need not be new or identical to or have functional capabilities equal to or greater than those of the original wheelchair.”

SECTION 10. Section 107 of chapter 93 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking out within the definition of “Reasonable attempt to repair”, in line 57, the words “one year,” and inserting in place thereof the following words: “two years”.

SECTION 11. Section 107(B) of chapter 93 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking out in lines 69 and 72, the words “one year” and inserting in place thereof the following words: “two years”.

SECTION 12. Section 107 (C)(1) of chapter 93 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking out, in line 81 the words “one year” and inserting in place thereof the following words: “two years”.

138 SECTION 13. Section 107 of chapter 93 of the General Laws shall be amended by
139 inserting after section 107(C)(5) the following sections:

140 “(D) If a wheelchair covered by a manufacturer’s warranty has a nonconformity to which
141 the warranty is applicable and is made available by the consumer to the manufacturer or a
142 customized wheelchair dealer for the repair of the nonconformity, and if such repair is
143 reasonably expected by the manufacturer to be longer than ten days, or if ten business days have
144 lapsed before completion of the repair, the manufacturer shall offer, or coordinate with an
145 authorized wheelchair dealer to offer to the consumer, for the duration of the repair period,
146 directly and at no cost to the consumer, as selected by the consumer and as soon as reasonably
147 possible: (A) a temporary loaner wheelchair; or (B) reimbursement for the cost incurred by the
148 consumer for renting a wheelchair meeting the requirements of a temporary loaner wheelchair,
149 while the original wheelchair is assessed and repaired.”

150 “(E) The attorney general shall promulgate such rules and regulations as deemed
151 necessary for the interpretation, implementation, administration, and enforcement of this section.
152 Such authority shall be in addition to the attorney general's authority to promulgate rules and
153 regulations under section 2 of chapter 93A.”

154 SECTION 14: Sections 107 (D), (E) and (F) of chapter 93 of the General Laws shall be
155 relettered accordingly.